Kentucky AI Guidance Brief: Data and Student Privacy Passages

Excerpted verbatim from *Artificial Intelligence Guidance Brief (Kentucky Department of Education, 2024)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Superscript numbers are footnote markers copied from the source.

Guiding Questions for AI Integration (excerpt)

Source: page 3

- Am I feeding any sensitive or personal information/ data to an AI that it can use or share with unauthorized people in the future?
- Is this AI part of our enterprise, KETS, or KDE ecosystem, or is it a third-party tool offered by someone we may not be familiar with (or have a relationship with)?
- Does this AI bot want me to give it permissions to access all of my account information or act like it is me?
- If the tool is “free” to use, then am I the payment? (my data, district data, or other datasets of which I have access - beware of freemium models)

Unpacking the Master Plan Statement: Safe and Responsible (excerpt)

Source: page 8

Ensuring the safe and responsible use of such tools means embedding transparency, data protection measures, fairness, non-discrimination, ethical practices, and continuous monitoring into the day-to-day operations of these AI-enabled systems.

Guiding Principles: Transparency and Accountability (excerpt)

Source: page 9

When AI tools are used, students, teachers, and parents should be informed how the vendor-provided application works and what data they collect and/or store. This is especially important when the data is sensitive.

Guiding Principles: Privacy and Data Protection

Source: page 10

All AI application usage should adhere to state and federal privacy laws, such as the Family Educational Rights and Privacy Act (FERPA)[5], the Children's Online Privacy Protection Act (COPPA)[6], and Kentucky House Bill (HB) 5 (2015)[7]. Student and educator data should always be treated with utmost confidentiality and security.

Guiding Principles: Data Quality and Integrity (excerpt)

Source: page 10

The KDE will hold to our data governance and data quality standards and partner with experts when appropriate to identify continued development of data best practices when using created or curated AI systems.

Online, Virtual & Remote Learning: Policy-in-Action Spotlight (excerpt)

Source: page 13

Online/virtual programs incorporating AI tools have a crucial responsibility: safeguarding content/curriculum through rigorous vetting and adhering to data security standards. Resources and oversight models can empower these programs to fulfill this duty, ensuring vendor AI integrations enhance learning while protecting sensitive information.